

6th Legislature



Enactment No. 33

To make a lawful act amending Enactment Number 19A, the Election Rules and Regulations of the Chickasaw Nation.

IN THE CHICKASAW TRIBAL LEGISLATURE

April 21, 1989

Mr. Harold HENSLEY introduced the following bill which was referred to the Human Services and Elections Committee

A BILL

To amend the rules and regulations governing tribal elections, and for other purposes.

Be it enacted by the tribal legislature of the Chickasaw Nation assembled, that this Act may be cited as the "Amendments to Election Rules and Regulations of the Chickasaw Nation Act of 1989."

SEC. 2. The Legislature finds that--

- (1) A need exists for amending the rules and regulations governing tribal elections;
- (2) certain other requirements are mandated by the Constitution which have not yet been adopted.

SEC. 3. For the purpose of this Act--

- (1) Words contained herein shall remain as defined in Enactment Number 19A, with certain definitions listed in each of the three new sections of the Election Rules and Regulations of the Chickasaw Nation as contained in this Act.

SEC. 4. The basis for authority of this Act is Article VII, Section 6, Article XIV, Section 2 and Article XVI, Section 1(g) and Section 2(b), wherein the tribal legislature is empowered to enact rules, regulations and procedures pertaining to various elections of the Chickasaw Nation in accordance with the Constitution. The Chickasaw Tribal Legislature, with the adoption of this Act, hereby:

(a) Amends the existing provisions of Enactment Number 19A in the manner contained herein;

(b) creates and adds three new parts to Enactment Number 19A, as contained herein;

SEC. 5. Amendments shall be made to existing provisions of Enactment Number 19A in the following manner:

(a) In Part One, Article III, Section 2, strike the words ~~registered to vote, and not employed by the Chickasaw Nation~~ and insert the word *registered* between the words *a* and *Chickasaw* and insert the word *voter* after the word *Chickasaw* and follow it with a period.

(b) In Part Two, Article II, Section 1, strike the word ~~June~~ and insert the word *May* in the first sentence.

(c) In Part Three, Article I, Section 4, second sentence, strike the word ~~secretary~~ and insert the words *voter registrar*.

(d) In Part Three, Article II, Section 1, strike the word ~~election~~ and insert the words *close of voter registration*.

(e) In Part Three, Article II, Section 2, add a new second sentence which reads: *Such challenges must be filed no later than ten (10) days prior to the close of voter registration.*

(f) In Part Three, Article III, Section 1, add a new second sentence which reads: *Such challenges must be filed no later than five (5) working days after the closing of the filing period for candidates.*

(g) In Part Four, Article I, Section 8, add a line beside the voter signature so that, if it is not electronically or otherwise provided for or by the Chickasaw Election Commission, the voter may fill in his or her voter identification number. Add an additional sentence to read: *If the voter identification number is not provided by a process determined by the Chickasaw Election Commission, then, as an option, space shall be provided for the voter to supply his or her voter identification number, as printed on the mailing label. If the number is not provided electronically or by other means as provided for by the commission, then directions pertaining to this line shall be included in all voter instructions accompanying each ballot.*

All return ballot envelopes shall include first class postage.

(h) In Part Four, Article II, Section 5, delete the last two sentences and insert the following:

The chairman of the Chickasaw Election Commission and one other commissioner shall have possession of the keys during this time period. Each shall obtain his own lock and retain both keys.

(i) In Part Four, Article IV, Section 4, add the following sentence to the end of that section: *No watcher shall talk to any counter during the actual vote counting process or disturb the proceedings in any other manner. One warning to a watcher for such interference given by a member of the Chickasaw Election Commission shall result in the watcher's expulsion from the proceedings.*

(j) In Part Five, Article I, Section 2, in the first sentence, delete the words ~~presiding judge~~ and insert the words *a person selected by the Chickasaw Election Commission through consultation.*

SEC. 6. A new Part Eight is hereby created and added to Enactment Number 19A, being inserted immediately following Part Seven. This part shall read as follows:

PART EIGHT

Election Rules and Procedures Governing Initiative Petitions

Article I - General Provisions

Section 1. An initiative petition is hereby defined as a petition filed by a single citizen or by any number of citizens, which meets the criteria contained in Article XIV of the Constitution, and which seeks legislative changes through the filing of formal petitions to be acted on by the legislature and by the electorate of the Chickasaw Nation. Initiative petitions enable the people to exercise their right to propose bills and laws, and to enact or reject them at the polls, independent of the Chickasaw Tribal Legislature.

Section 2. When an initiative petition is filed with the tribal court, the court shall immediately notify the chairperson of the tribal legislature, in writing, of the nature of the petition, including a copy of the petition as filed and a certified statement which provides the names of the citizen or citizens filing said petition, the date and time that the petition was received by the court, as well as a copy of all of the pages containing the

signatures of registered tribal voters which were submitted with the initiative petition.

Section 3. The chairperson of the tribal legislature shall notify, by most expedient method, the remaining members of the legislature of the petition's filing, placing the item on the agenda for the next regularly scheduled session of the legislature.

Article II - Acting Upon Initiative Petitions

Section 1. After notification has been given to all members of the legislature by the chairperson, he or she shall submit copies of all of the signature pages included in the petition to the election secretary. The election secretary and staff shall review the signatures to ascertain an accurate and exact count of the number of signatures which are valid signatures of registered tribal voters. This shall be accomplished in such time to allow for verification of those signatures to be provided to the legislature at its next regularly scheduled session; provided, however, that if insufficient time exists between the time the list is provided the election secretary and the date of the next session of the legislature, then the election secretary shall have five (5) working days in which to provide a list of those verified signatures to the governor. If that period is after the regular session of the legislature, then the governor shall call a special session of the legislature, in accordance with such procedures as contained in the Constitution, to be held within five (5) working days of his receipt of the verified list of signatures. Should the list not contain the proper percentage of voters' signatures as provided for in Article XIV, Section 1 of the Constitution, it shall be the responsibility of the governor to so notify the tribal legislature and, through use of all available media, to also notify the public of the failure of the initiative petition.

Section 2. If the petition contains the proper number of valid signatures as determined by the election secretary, then the election secretary shall so notify the governor. The governor shall then call a special session of the legislature to be effected in the same time frame as contained in Section 1 above.

Section 3. If the petition contains the proper number of valid signatures as determined by the election secretary, then the governor shall present the initiative petition to the legislature assembled. The legislature

shall, by the adoption of a simple resolution, acknowledge receipt of the initiative petition and its verified signatures. The governor shall call an election for the purpose of submitting the proposed legislation, in its exact and original form, to a vote of the Chickasaw Nation electorate, in a manner so that such elections shall be conducted within 60 days, provided, that if a petition is presented within 180 days of the next regular tribal election, the proposition shall be presented to the voters at that time.

Article III - Conduction of Initiative Petition Elections

Section 1. The Chickasaw Election Commission is hereby charged with full and complete responsibility in the conduction of initiative petition elections. Wheresoever practicable, these elections shall be conducted in full compliance with Part Two, Article IV, Section 1; with Part Three, Article I, Sections 1, 2, 3, 4, 5, and 6; with Part Three, Article II, Section 1; with Part Three, Article II, Sections 3 and 4; with Part Four, Article I, Sections 1, 5, 6, 7, 8, 9 and 11; with Part Four, Article II, Sections 2, 3, 4, 5, 6, 7, 8 and 9; with Article V, Sections 1, 2 and 3; and with Part Seven, Article I, Section 1, of the existing Election Rules and Regulations of the Chickasaw Nation as contained in Enactment Number 19A and in this Act.

Section 2. Official ballots shall be mailed to each qualified absentee voter on a Monday selected by the Chickasaw Tribal Legislature in compliance with the provisions and requirements of Article XIV of the Constitution and of this Act. Names on outgoing envelopes should be the same as appears on the voter registration applications.

Section 3. Returned ballots must be received by mail at the designated address or box number no later than 5 p.m. on the third Monday following the Monday on which the ballots are to be mailed. No hand delivered ballots will be accepted.

Section 4. Ballots shall be counted invalid for any of the following reasons:

- (a) Ballots received after the third Monday following the Monday on which the ballots are mailed;
- (b) ballots not returned in inner envelopes;
- (c) inner envelopes not returned in outer envelope;

(d) signature on proper forms not verifiable as belonging to actual voter registered (a member of the election commission shall have the authority to determine the validity of the signature);

(e) ballots not marked;

(f) ballots marked incorrectly;

(g) ballots that are too soiled or defaced to read;

(h) more than one of each ballot in the inner envelope.

Section 5. The election commission shall supervise the election ballot-counting on Tuesday immediately following the Monday on which ballots are to be returned, starting at or about 9 a.m. Results shall be announced on that same day, as soon as ballot-counting for the initiative petition is completed.

SEC. 7. A new Part Nine is hereby created and added to Enactment Number 19A, being inserted immediately following Part Eight. This part shall read as follows:

PART NINE

Election Rules and Procedures Governing Recall Elections

Article I - General Provisions

Section 1. A recall election is hereby defined as a method of removal of an official in which the power of removal is granted by Article XVI, Section 2, of the Constitution, and reserved by the same, to the people. It is the right or procedure by which a public official may be removed from office before the end of his term of office by a vote of the people to be taken on the filing of a petition signed by not less than 25 percent of the registered voters residing within the district or area from which the official was elected.

Section 2. When a recall petition is submitted to the tribal court, the court shall immediately notify the chairperson of the tribal legislature, in writing, of the nature of the petition, including a copy of the petition as filed and a certified statement which provides the names of the citizen or citizens filing said petition, the date and time that the petition was received by the court, as well as a copy of all of the pages containing the signatures of registered tribal voters which were submitted with the recall petition.

Section 3. The chairperson of the tribal legislature shall notify, by most expedient method, the remaining members of the legislature of the petitions' filing, placing the item on the agenda for the next regularly scheduled session of the legislature.

Article II - Acting Upon Recall Petitions

Section 1. After notification has been given to all members of the legislature by the chairperson, he or she shall submit to the election secretary copies of all of the signature pages included in the petition. The election secretary and staff shall review the signatures to ascertain an accurate and exact count of the number of signatures which are valid signatures of registered tribal voters. This shall be accomplished in such time to allow for verification of those signatures to be provided to the legislature at its next regularly scheduled session; provided, however, that if insufficient time exists between the time the list is provided the election secretary and the date of the next session of the legislature, then the election secretary shall have five (5) working days in which to provide a list of those verified signatures to the legislature chairperson. If that period is after the regular session of the legislature, then the governor shall call a special session of the legislature, in accordance with such procedures as contained in the Constitution, to be held within five (5) working days of his receipt of the verified list of signatures. Should the list not contain the proper percentage of voters' signatures as provided for in Article XVI, Section 2 of the Constitution, it shall be the responsibility of the governor to so notify the tribal legislature and, through use of all available media, to also notify the public of the failure of the recall petition.

Section 2. If the recall petition contains the proper number of valid signatures as determined by the election secretary, then the election secretary shall so notify the governor. The governor shall then call a special session of the legislature to be effected in the same time frame as contained in Section 1 above.

Section 3. If the petition contains the proper number of valid signatures as determined by the election secretary, then the governor shall present the recall petition to the legislature assembled. The legislature shall, by the adoption of a simple resolution, acknowledge receipt of the recall petition and its verified signatures

and shall then call and conduct the recall election for the purpose of submitting, by virtue of a yes or no vote, the proposed recall of the elected official named in the recall petition. In all such cases, the conduction of such elections shall be delegated to the Chickasaw Election Commission, in a manner so that such elections shall be conducted within 60 days, provided, that such election may be held in conjunction with the next regular tribal election if it is scheduled to be held within the next 60 days.

Article III - Conduction of Recall Elections

Section 1. The Chickasaw Tribal Legislature shall provide oversight of the election commission in the conduction of recall elections. Wheresoever practicable, these elections shall be conducted in full compliance with Part Two, Article IV, Section 1; with Part Three, Article I, Sections 1, 2, 3, 4, 5 and 6; with Part Three, Article II, Sections 1, 3 and 4; with Part Four, Article I, Sections 1, 5, 6, 7, 8, 9 and 11; and with Part Seven, Article I, Section 1, of the existing Election Rules and Regulations of the Chickasaw Nation as contained in Enactment Number 19A and in this Act.

Section 2. Official ballots shall be mailed to each qualified absentee voter on a Monday selected by the Chickasaw Tribal Legislature in compliance with the provisions and requirements of Article XVI of the Constitution and of this Act. Names on outgoing envelopes should be the same as appears on the voter registration applications.

Section 3. Returned ballots must be received by mail at the designated address or box number no later than 5 p.m. on the third Monday following the Monday on which the ballots are to be mailed. No hand delivered ballots will be accepted.

Section 4. Ballots shall be counted invalid for any of the following reasons:

(a) Ballots received after 5 p.m. on the third Monday following the Monday on which the ballots are mailed;

(b) ballots not returned in inner envelopes;

(c) inner envelopes not returned in outer envelope;

(d) signature on proper forms not verifiable as belonging to actual voter designated;

- (e) ballots not marked;
- (f) ballots marked incorrectly;
- (g) ballots that are too soiled or defaced to read;
- (h) more than one of each ballot in the inner envelope.

Section 5. The chairperson of the tribal legislature shall appoint a four-member team, composed of one member of the legislature from each legislative district, to observe the election ballot-counting on Tuesday immediately following the Monday on which ballots are to be returned, starting at or about 9 a.m. The election secretary shall announce the results on that same day, as soon as all ballot-counting is completed. The election commission shall insure that only one ballot is cast by each voter.

Section 6. The election commission shall insure that each voter has signed the outer envelope where indicated.

Section 7. The election secretary shall make a final tally of the results, based on tallies received from all counters.

Section 8. The election commission shall prescribe methods of sealing all ballots, all certificates of vote and all other materials used in recording the count of the ballots in such a manner that any tampering with or altering of same after said sealing has been accomplished can be detected. The commission shall return all ballots to ballot boxes and lock each box for a period of three days. The legislature chairperson and the legislature secretary shall have possession of the keys during this time period.

Section 9. The election commission shall initiate procedures to preserve all invalid and all valid ballots for at least three years.

Section 10. The election secretary shall certify the election returns by declaring the election results on the same day as the ballots are counted. A copy of the returns shall be posted at the Chickasaw Nation Headquarters and a copy mailed to the Bureau of Indian Affairs agency office.

Article IV - Bid Solicitation

Section 1. The election commission shall solicit and receive contract negotiation bids to include the cost of ballot counting, printing and mailing of ballots, envelopes, instructions and other material or services needed to conduct a recall election. Bid solicitation shall be conducted in accordance with approved methods currently in existence for normal tribal government purchases. Acceptance of bids may be made on the basis of any portion of the winning bid submitted and does not necessarily have to include all the bidding provisions, and may include other considerations.

SEC. 8. A new Part Ten is hereby created and added to Enactment Number 19A, inserted immediately following Part Nine. This part shall read as follows:

PART TEN

Election Rules and Procedures Governing Constitutional Amendment Elections

Article I - General Provisions

Section 1. An election for constitutional amendment is defined as the method by which the Constitution is modified, certain parts deleted or additions made, in accordance with the provisions of Article XVIII of the Constitution.

Section 2. Constitutional provision is made for amending the Constitution by one of two methods. Section 1(a) provides for proposed amendments to be adopted by the legislature through a resolution which passed by at least nine affirmative votes. Section 1(b) provides that a valid petition may be submitted to the legislature signed by not less than 20 percent of the registered voters of the Chickasaw Nation. When a petition is submitted to the legislature, the chairperson shall immediately notify the members of the legislature, in writing, of the nature of the petition, including a copy of the petition as filed and a certified statement which provides the names of the citizens filing said petition and the date and time that the petition was received by the legislature.

Section 3. The chairperson of the tribal legislature shall place the item on the agenda for the next regularly scheduled session of the legislature.

Article II - Acting Upon Constitutional Amendment Petitions

Section 1. After notification has been given to all members of the tribal legislature by the chairperson, he or she shall submit to the election secretary copies of all of the signature pages included in the petition. The election secretary and staff shall review the signatures to ascertain an accurate and exact count of the number of signatures which are valid signatures of registered tribal voters. This shall be accomplished in such time to allow for verification of those signatures to be provided to the legislature at its next regularly scheduled session; provided, however, that if insufficient time exists between the time the list is provided the election secretary and the date of the next session of the legislature, then the election secretary shall, as soon as possible, provide a list of those verified signatures to the governor. Should the list not contain the proper percentage of voters' signatures as provided for in Article XVIII, Section 1(b) of the Constitution, it shall be the responsibility of the governor to so notify the legislature and, through use of all available media, to also notify the public of the failure of the amendment petition.

Section 2. If the amendment petition contains the proper number of valid signatures as determined by the election secretary, then the election secretary shall so notify the governor.

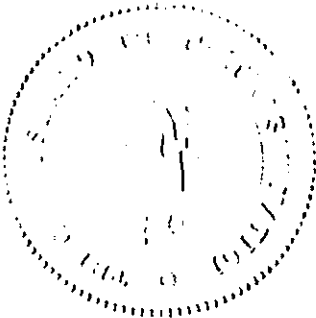
Section 3. If the petition contains the proper number of valid signatures as determined by the election secretary, or if the legislature has adopted a resolution calling for an amendment to the Constitution, then the governor shall call an election for the purpose of submitting that proposed constitutional amendment to a vote of the eligible tribal voters. This election may be held in conjunction with other tribal elections so long as compliance with the provisions of this Act and applicable provisions of the Constitution are effected.

Section 4. All elections for constitutional amendments shall be conducted by the Chickasaw Election Commission. Such ballots shall be submitted to the Chickasaw electorate for a simple yes or no vote. In all such cases, such elections shall be conducted by the commission in full accordance with the provisions of this Act and of the Constitution.

Article III - Conduction of Constitutional Amendment Elections

Section 1. The Chickasaw Election Commission is charged with full and complete responsibility in the conduction of constitutional amendment elections. Wheresoever practicable, these elections shall be conducted in full compliance with Part One, Article I, Sections 2 and 3; with Part One, Article II, Sections 1, 2 and 3; with Part One, Article III, Sections 1 and 2; with Part Two, Article IV, Section 1; with Part Three, Article I, Sections 1, 2, 3, 4, 5 and 6; with Part Three, Article II, Sections 1, 3 and 4; with Part Four, Article I, Sections 1, 2, 3, 5, 6, 7, 8, 9, 10 and 11; with Part Four, Article II, Sections 1, 2, 3, 4, 6, 7, 8 and 9; with Part VI, Sections 1 and 2 and with Part Seven, Article I, Section 1, of the existing Election Rules and Regulations of the Chickasaw Nation as contained in Enactment Number 19A and in this Act.

Executed in ^{SPECIAL} ~~regular~~ session of the Chickasaw Tribal Legislature meeting at Ada, Oklahoma, on ^{APRIL 6,} ~~January 20,~~ 1989, by a vote of 9 ayes, 2 nays and 1 abstentions.



Joe Kent Abbott
Chairperson
Chickasaw Tribal Legislature

Paul Deaton
Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby
Bill Anoatubby, Governor, the Chickasaw Nation

Date: APR 7 1989